



U.S. Department
of Transportation

Research and
Special Programs
Administration

DEC 7 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11562
(FIRST REVISION)

EXPIRATION DATE: December 1, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

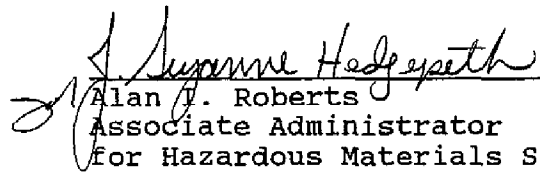
1. GRANTEE: Monsanto Company, Chemical Group
St. Louis, Missouri
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of benzyl chloride in phenolic lined UN1A1 drums. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101, Hazardous Materials Table, Column 7, Special Provision N43.
5. BASIS: This exemption is based on the application of Monsanto Company dated September 22, 1995, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon and supplemental letter dated October 12, 1995.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Benzyl chloride	6.1	UN1738	II

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed are phenolic lined UN1A1/X1.8 carbon steel drums with a minimum body and head thickness of 0.050 inch.
 - b. TESTING - Drums must be tested in accordance with 49 CFR Subpart M of Part 178, at the Packing Group I level for liquids at a relative density (specific gravity) of not less than 1.8.

- c. MARKING - Each drum must be plainly and durably marked "DOT-E 11562".
8. SPECIAL PROVISIONS:
- a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- c. Drums authorized under this exemption may not be reused.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: No modal-specific requirements are required by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.
- No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.
12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan J. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 7 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA
PO: JSH